

Alternative Proposal

City of Cambridge Curb Cut Ordinance Regulations

The City of Cambridge Inspectional Services Department Commissioner hereby adopts the following Curb Cut Ordinance Regulations pursuant to the Delegation of Curb Cut Authority Ordinance, 12.24 of the Cambridge Municipal Code (“Curb Cut Ordinance” or “Ordinance”). The provisions of the Curb Cut Ordinance, including but not limited to the definitions contained in the Ordinance, shall apply to these regulations.

Article I – Definitions

§ 1.1 Construction of definitions or words and phrases

- (a) The following words and phrases when used in these regulations shall for the purpose of these regulations have the meanings respectively ascribed to them in this article, except in those instances where the context clearly indicates a different meaning.
- (b) Whenever any words and phrases used herein are not defined herein but are defined in [any applicable] State laws or regulations, any such definition therein shall be deemed to apply to such words and phrases used herein.

§ 1.2 Definitions

“Abutters/Neighbors” shall mean anyone within 150 feet of the property lines of the parcel on which the Curb Cut, as defined herein, is proposed, along either side of the street, who owns a parcel or rents as a tenant of a residential or commercial unit.

“CDOT” shall mean the City’s Department of Transportation.

“City” shall mean the City of Cambridge.

“Curb Cut” shall mean the installation or modification of an at-grade motor vehicle passage between a public way and private property.

“Department of Public Works” or “DPW” shall mean the City’s Public Works Department.

“DPW Commissioner” shall mean the Commissioner of DPW or their designee.

“Inspectional Services Department” or “ISD” shall mean the City’s Inspectional Services Department.

“ISD Application” shall mean an Application for installing or modifying Curb Cuts submitted to ISD.

“ISD Commissioner” shall mean the Commissioner of ISD or their designee.

“ISD Permit File” shall mean the file maintained by ISD after an applicant submits an ISD Application and pays any related fees.

“Plan” shall mean a scale plan stamped by a registered land surveyor or a professional civil engineer.

“Traffic Director” shall mean the Traffic Director of CDOT or their designee.

Article II – Curb Cut Requirements

§ 2.1 Allowable Curb Cuts

- (a) Curb Cut shall be permitted only when it does not constitute a nuisance, hazard, or unreasonable impediment to traffic. The criteria for determining that a Curb Cut does not constitute a nuisance, hazard, or unreasonable impediment to traffic is met if the ISD Commissioner determines that the proposed curb cut complies with:
 - i. Cambridge Zoning Ordinance Section 6.43.3(a)-(c)
 - ii. Cambridge Zoning Ordinance Section 6.43.4(a)-(c)
- (b) In accordance with Cambridge Zoning Ordinance (CZO) 6.43.5, the BZA may grant relief in the form of a special permit modifying the provisions of CZO 6.43, and its subsections.

Article III - Curb Cut Application and Approval Process

§ 3.1 Application

- (a) An applicant seeking a Curb Cut shall submit an ISD Application. Instructions for opening an ISD Application can be found at:
<https://www.cambridgema.gov/iwantto/applyforacurbcut>.
- (b) The ISD Application shall detail the requirements for completing and submitting the application.

- (c) Upon submission to ISD of an ISD Application and payment of any related fees ISD will open and maintain an ISD Permit File.

§ 3.2 Plan

An ISD Application shall include an applicant submitted Plan detailing the proposed Curb Cut including property lines, driveway and curb cut location, widths, and distance from nearest intersections, crosswalks, and any vertical obstructions including but not limited to trees, fences, utility poles, street lights, and any additional information required to demonstrate zoning compliance. § 3.3 City Staff Review

- (a) The ISD Commissioner shall review an ISD Application to confirm zoning compliance.
 - (i) If the ISD Commissioner determines an ISD Application does not comply with applicable zoning ordinances, then the ISD Commissioner will notify the applicant that the ISD Application is denied and the ISD Permit File closed.
 - (ii) If the ISD Commissioner determines an ISD Application complies with applicable zoning ordinances and the applicant provided a Plan, then:
 - (A) The Traffic Director will review the ISD Application for impacts on traffic and safety and enter their findings in the ISD Permit File; and
 - (B) The DPW Commissioner will review the ISD Application for design compliance and street conflicts and enter their findings in the ISD Permit File.
- (b) The ISD Commissioner shall review the findings of the Traffic Director and the DPW Commissioner in making a preliminary determination regarding whether to issue a Curb Cut permit; however, those findings shall not be binding on the ISD Commissioner in deciding whether to issue a Curb Cut permit.
- (c) If the ISD Commissioner makes a negative determination, then the ISD Commissioner will notify the applicant that the ISD Application is denied and the ISD Permit File closed. If the ISD Commissioner makes a positive determination, then the applicant proceeds with Notification to Abutters/Neighbors.

§ 3.3 Notification to Abutters/Neighbors

- (a) An applicant shall send letters to all Abutters/Neighbors, at the Abutters/Neighbors' property addresses including all units in rental and condo multifamily buildings and owner's address if different than the property address, via certified and first-class mail, that:
 - (i) describe the proposed Curb Cut and information sufficient to allow the Abutters/Neighbors to locate and review the relevant ISD Permit File; and
 - (ii) give notice that ISD must receive comments, support, or objections within 30 days from the date the mailings were sent.
- (b) An applicant shall file in their ISD Permit File an affidavit attesting to any mailings sent pursuant to § X.X(a) and include therewith copies of those mailings.
- (c) Abutters/Neighbors may submit comments, support, or objections to ISD for review within 30 days from the date the mailings were sent.
- (d) The ISD Commissioner shall review the Abutters/Neighbors comments, support, or objections in making a final determination regarding whether to issue a Curb Cut permit; however, those findings shall not be binding on the ISD Commissioner in deciding whether to issue a Curb Cut permit.
- (e) If the ISD Commissioner makes a negative determination, then the ISD Commissioner will notify the applicant that the ISD Application is denied and the ISD Permit File closed. If the ISD Commissioner makes a positive determination, then the Curb Cut permit will be issued.